Supreme Court 2023-2024 Term

Stat Pack

EmpiricalSCOTUS

Viewing the Supreme Court in an Entirely New Light

Compiled by Adam Feldman (J.D., Ph.D.) and Jake S. Truscott (Ph.D.)

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We give particular thanks to <NAME> and <NAME> for their assistance reviewing these materials prior to their public release. For additional data and accompanying analysis, please visit EmpiricalSCOTUS or Contact Us.

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Preface

The enclosed report represents the culmination of a ten-month effort to provide summary statistics and corresponding analysis for the Supreme Court's 2023 Term (October 2023 to June 2024), which we hope to replicate for future terms.

Our goal was to provide a comprehensive overview of the term while recognizing that much of what we offer remains surface-level data. In recent years, some have taken exception to how data such as these are used, particularly as it relates to drawing generalizable claims of the Court and its Justices. We would like to take the time to state our position on these concerns:

First, we fully recognize that our data provides only surface-level inferences. As many have pointed out, the Court retains considerable discretion with respect to the size and scope of its docket. Indeed, a considerable majority of the Court's decision-making is determining which appeals will *not* receive review, rather than what will. It is not lost on us that these x cases decided in the 2023 term are not fully emblematic of the Court's broader decision-making. While we do provide statistics on the docket more generally, we advise pursuing additional scholarship focusing on this area.

Second, our summary analyses do not make distinctions between cases of varying importance to the national discourse. Not because we fail to recognize that these distinctions obviously exist, but because our goal is to provide an overview of the Justices' most observable decision-making behaviors – irrespective of the broader importance some of these decisions may have compared to others. In short, they are numbers – nothing more, nothing less. There is no underlying agenda in our decision to present topline statistics.

Finally, we recognize that these data do not belong to us in perpetuity. Once we have published our report, any person, outlet, or entity are free to use them - just as we have been facilitating open access to our data throughout the term. Nonetheless, we ask those who read our report to be conscientious of the fact that we cannot control - nor do we particularly wish to control - how they are used. The Supreme Court retains special significance in our national discourse, and its decisions can surely draw considerable divisions among the population. Some readers may find exception to how others chose to interpret these data. We ask that you not hold it against us.

We would like to thank all of those who aided in the development of this report – particularly those who offered guidance, fact-checking, and constructive criticism.

- Adam Feldman (J.D., Ph.D.)[1]
- Jake S. Truscott (Ph.D.)[2]

[1] Adam Feldman serves as chief proprietor of the EmpiricalSCOTUS blog and is the principal for the legal data consulting firm *Optimized Legal*.

[2] Jake S. Truscott is a Post-Doctoral Research Associate at the Center for C-SPAN Scholarship & Engagement (Purdue University) and an incoming Assistant Professor of Political Science at the University of Florida.

Data Disclosure

We are particularly grateful to the organized efforts of those maintaining the Supreme Court Database, which is principally hosted by Washington University in St.Louis, Missouri.[3] Their data was pivotal for constructing longitudinal analyses that place the Justices' decision-making during the 2023 term into the broader scope of history.

Apart from data used to develop longitudinal analyses, this report was compiled independently and drew on a multitude of resources to sufficiently track developments and behaviors expressed in the Court's oral arguments, its decisions, and its docket, among other things. These include, but are not limited to, the Supreme Court's Official Website, Oyez, and Justia, among others.

All data and accompanying replication files used to compile this report are available HERE. For guidance on data usage and replication, please see the document entitled *Data and Replication Guide*. Among these are a folder entitled *Data Files*, which offers a collection of Excel (.xlsx) and R (.Rdata) files containing data relevant to the accompanying analyses on *Decisions* and *Oral Arguments* provided in this report. Alternatively, replication files can be found in the *Replication Files* folder, which contains relevant code to reproduce all of the report's figures and tables in the R Programming Language.

We are, of course, happy to provide any additional insights and guidance on replication of data and other analysis in this report. For help, please Contact Us.

These files and accompanying data are free and available for public use. We just ask that any publication incorporating these data or other material from our report provide a corresponding citation acknowledging the authors and EmpiricalSCOTUS.

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[3] Harold J. Spaeth, Lee Epstein, et al. 2022 Supreme Court Database, Version 2022 Release 1. URL: `http://Supremecourtdatabase.org`

Introduction

Steven Mazie, a veteran Supreme Court Correspondent for *The Economist* and Professor of Political Studies at Bard High School Early College-Manhattan, wrote on *Twitter/X* in February 2024 that he "made a one-pager table of this year's biggest Supreme Court cases for [his] students and after talking them all through in class [he] flabbergasted even [himself]. Five social media cases, two gun cases, two abortion cases, four admin law cases, a case on homelessness and cruel & unusual punishment—plus a schmear of Trump law cases. And more. *It's insane*."

Toplines

Decisions

- Most Authored Opinions:
  - Majority Opinions:
  - Concurrences:
  - Dissents:
- Decisions by Coalition:
  - (9-0):
  - (8-1):
  - (7-2):
  - (6-3, Any Combination):
  - (6-3, Ideologically Split):
  - (5-4):
- Longest Opinion (Word Count):

Oral Arguments

- Longest Argument (Minutes):
- Most Frequent Arguing Counsel:
- Most Time Speaking (Term Total, Justice):
- Most Time Speaking (Single Argument, Justice):
- Most Time Speaking (Single Argument, Attorney):

Docket

- Petitions Filed (Approx.):

Decisions

Frequency in Majority

Decision by Coalition

Voting Alignments

Opinion Authorship

Split Decisions: (6-3) and (5-4)

Unanimity

Turnover Between Arguments Decision

Circuit Scorecard

Oral Arguments

Oral Argument Calendar – 2023 Term

Oral Argument Participation – Justices

Oral Argument Participation – Attorneys

Oral Argument – Time for Arguments

Docket

Filing Trends – 2023 Term

Emergency Orders

Final Notes